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County: los-angeles

Division: Civil Law and Motion

Department: N

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Case Number: 26SMCV01925 Hearing Date: September 2, 2026 Dept: N

TENTATIVE RULING

The hearing on Plaintiff Alessandro A. Dazzan's Motion to Enforce Code of Civil Procedure section 871.26(h) and Request for Monetary Sanctions of \$2,500 is CONTINUED TO _____ in order to provide Defendant Jaguar Land Rover North America, LLC with an opportunity to file a motion for protective order.

An Order to Show Cause re: Filing of Motion for Protective Order is scheduled for _____, 2026, at _____ in Department N of the Santa Monica Courthouse.

Plaintiff to give notice.

REASONING

Plaintiff moves for an order enforcing Code of Civil Procedure section 871.26, subdivision (h), and compelling Defendant to produce within fifteen (15) days (1) Warranty Policies and Procedure Manuals under subdivision (h)(12) and (2) the manufacturer's written statement of policies and procedures used to evaluate customer requests for restitution or replacement pursuant to "Lemon Law" claims under subdivision (h)(15). Plaintiff also requests that the Court impose monetary sanctions in the amount of \$2,500, payable within fifteen (15) business days. Plaintiff argues that Defendant filed its answer on May 22, 2026 and, thus, had to produce the seventeen categories of documents enumerated in subdivision (h) on or before July 10, 2026, 60 days after filing the answer. According to Plaintiff, Defendant failed to produce documents under subdivisions (h)(12) and (h)(15). Plaintiff also argues that the manufacturer may not condition its mandatory, self-executing production obligation on the entry of a protective order. Plaintiff argues that the Court has authority to order compliance pursuant to Code of Civil Procedure section 128, subdivision(a) and Government Code section 68608, subdivision 9(b), and to impose monetary sanctions pursuant to section 871.26, subdivision (j).

In opposition, Defendant argues that it served its initial disclosures on July 9, 2026, within 60 days of the Answer and produced about 889 pages of documents. However, Defendant conditioned its production of warranty policies and procedure manuals under subdivision (h)(12), and the manufacturer's written statement of policies and procedures used to evaluate customer requests under subdivision (h)(15) on Plaintiff's agreement to a protective order, which was provided to Plaintiff on May 11, 2026. On July 22, 2026, Plaintiff's counsel informed Defendant's counsel that Plaintiff would not sign the Stipulation and Protective Order, arguing that the documents were required under the statute and not intended to be withheld subject to a protective order. The parties were unable to resolve this dispute. Defendant's counsel requested an extension to evaluate its position, but Plaintiff declined the extension and filed the instant Motion on August 3, 2026. Defendant argues that section 871.26 does not abrogate the right to a protective order for trade secrets and confidential commercial information. Defendant contends that the expedited disclosure requirements operate within the broader framework of the Civil Discovery Act, not in a vacuum, and that Code of Civil Procedure section 2031.060, subdivision (b)(5), expressly permits the court to order that "a

trade secret or other confidential research, development, or commercial information not be disclosed, or be disclosed only to specified persons or only in a specified way.” Similarly, Evidence Code section 1060 codifies the privilege to protect trade secrets from absolute disclosure. In this case, the warranty policies and procedure manuals and the written statement of policies and procedures used to evaluate customer requests are core proprietary operational materials not distributed to the general public and possess independent economic value. Defendant argues that its production of 889 pages of documents, fulfilling fifteen of the seventeen categories, and willingness to comply with its statutory obligations demonstrate good cause. Defendant attributes the delay to Plaintiff’s refusal to sign the standard, court-approved protective order. Thus, monetary sanctions should not be imposed.

In its Reply, Plaintiff argues that the statute does not condition compliance on execution of a protective order, and if Defendant intended to condition production on a protective order, Defendant had a duty to seek relief from the Court before disclosures were due. Code of Civil Procedure section 2031.060(a) requires a party to “promptly move for a protective order”; Defendant has not done so and is attempting to treat its opposition as a motion for protective order. Moreover, Defendant has failed to show how the data contained in the documents it is withholding is sensitive or proprietary as the motion contains only generic, conclusory allegations without any specific facts. Plaintiff also argues that sanctions are warranted as Defendant has failed to establish good cause for its failure to comply with its discovery obligations.

“‘[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.’” (Gonzalez v. Superior Court (1995) 33 Cal.App.4th 1539, 1546; Code Civ. Proc. §2017.010.) “For discovery purposes, information is relevant if it ‘might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement.’” (Gonzalez, 33 Cal.App.4th at 1546. [italics in original].)

Code of Civil Procedure section 871.26 “only applies to a civil action seeking restitution or replacement of a motor vehicle pursuant to Section 871.20.” (Code Civ. Proc., §871.26, subd. (a).) “Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).” (Id. at §871.26, subd. (b).) Specifically, the defendant or manufacturer must provide the documents listed in subdivision (h). (Id. at §871.26, subd. (h).) Sanctions of \$2,500 must be imposed against the defense attorney for failure to comply “unless the party failing to comply with this section shows good cause.” (Code Civ. Proc., §871.26, subd. (j).)

Code of Civil Procedure section 2031.060, subdivision (a) provides: “[w]hen an inspection, copying, testing, or sampling of documents, tangible things, places, or electronically stored information has been demanded, the party to whom the demand has been directed, and any other party or affected person, may promptly move for a protective order” accompanied with a meet and confer declaration. “The court, for good cause shown, may make any order that justice requires to protect any party or other person from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense” including “[t]hat a trade secret or other confidential research, development, or commercial information not be disclosed, or be disclosed only to specified persons or only in a specified way.” (Code Civ. Proc., §2031.060, subd. (b)(5); see also Civil Code section 3426.5.) The burden falls on the party seeking a protective order to show good cause with specific facts, not conclusory statements. (Nativi v. Deutsche Bank National Trust Co. (2014) 223 Cal.App.4th 261, 318.) Furthermore, Evidence Code section 1060 provides: “[i]f he or his agent or employee claims the privilege, the owner of a trade secret has a privilege to refuse to disclose the secret, and to prevent another from disclosing it, if the allowance of the privilege will not tend to conceal fraud or otherwise work injustice.”

The Court finds that Code of Civil Procedure section 871.26, subdivision (b), imposes a mandatory, self-executing disclosure obligation that requires production of the subdivision (h) documents within sixty days of the answer, without awaiting a discovery request. The statute’s text is clear and unambiguous. Defendant was required to produce warranty policies and procedure manuals under subdivision (h)(12), and the manufacturer’s written statement of policies and procedures used to evaluate customer requests under subdivision (h)(15), by July 10, 2026. Defendant did not do so. However, section 871.26 does not expressly prohibit a manufacturer from seeking a protective order to protect trade secrets or confidential commercial information in the subdivision (h) documents. The Civil Discovery Act, including section 2031.060, and the Evidence Code provisions governing trade secrets, remain in force. A manufacturer concerned about confidentiality may move the Court for a protective order under section 2031.060 and, if good cause is shown, obtain an order restricting dissemination of the documents while still complying with the section 871.26 disclosure obligation.

Here, Defendant provided a proposed stipulated protective order. When Plaintiff declined to sign the stipulation, Defendant's remedy was to promptly move the Court for a protective order pursuant to section 2031.060, subdivision (a). Defendant did not file a noticed motion, and instead withheld the documents. Moreover, the warranty policies and internal procedures may contain confidential commercial information warranting protection; however, Defendant has not yet met its burden of demonstrating that protection through the proper procedural mechanism. Thus, the Court cannot determine whether the documents constitute trade secrets without a proper evidentiary showing.

Regarding sanctions, the Court does not find that Defendant has shown good cause under section 871.26, subdivision (j). Defendant had a statutory remedy (a motion for protective order) and chose not to pursue it. Defendant's decision to withhold documents pending a stipulation Plaintiff refused to sign, without seeking timely judicial intervention, does not constitute good cause. Defendant's substantial compliance with other categories of subdivision (h) does not excuse noncompliance with the two categories at issue.

Thus, the Court finds that Plaintiff's motion to compel production of documents and request for monetary sanctions is supported. However, to balance Defendant's interest in protecting its proprietary information from public disclosure, the Court finds that the appropriate remedy is to continue the hearing on the instant Motion and afford Defendant an opportunity to move for a protective order.

Accordingly, the hearing on Plaintiff Alessandro A. Dazzan's Motion to Enforce Code of Civil Procedure section 871.26(h) and Request for Monetary Sanctions of \$2,500 is CONTINUED TO _____ in order to provide Defendant Jaguar Land Rover North America, LLC with an opportunity to file a motion for protective order.

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